

1.

CASE #	CASE NAME	HEARING NAME
CVPS2202954	LAPAY VS THE FAIRWAYS HOMEOWNER'S ASSOCIATION	HEARING RE: MOTION FOR ATTORNEYS FEES

Tentative Ruling: No tentative ruling. Hearing is continued to 12.02.26.

The court notes that Defendants' Motion for Attorney's Fees was filed on 5.06.26 with a hearing date of 6.12.26. Plaintiff's attorney, JC Chimoures, filed notice of Motion to be Relieved as to Plaintiff Simone Marie Lapay on 5.12.26, with a hearing on that motion for 6.29.26. An ex parte by Plaintiff's counsel to move the fee motion was granted on 5.19.26, moving the fee motion to 8.29.26. During that time frame, the court permitted Ms. LaPay additional time to seek counsel while the procedural issues of having Chimoures officially relieved remained. On 7.20.26 the court indicated that Ms. Lapay would be given additional time to find an attorney if necessary.

Defendants filed a notice of non-opposition indicating that Plaintiff failed to oppose the motion that was set for 8.29.26, missing the deadline of 8.18.26. However, the court notes that the motion was pending during the exact time the court was giving Ms. Lapay time to find a new attorney, and a substitution of attorney was filed on 8.27.26.

Due to those circumstances, the court shall permit Plaintiff's new attorney James L. Arrasmith to file an opposition to the Motion for Attorney's Fees, to be filed no later than 11.17.26. Defendants' Reply to be filed no later than 11.23.26.

No other briefing shall be permitted.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503181	CARREJO, BY AND THROUGH HIS SUCCESSORS IN INTEREST ROSALINDA FRAUSTO VS DESERT REGIONAL MEDICAL CENTER	MOTION TO SET ASIDE ON 2ND AMENDED COMPLAINT OF FRANCISCO CARREJO, BY AND THROUGH HIS SUCCESSORS IN INTEREST ROSALINDA FRAUSTO

Tentative Ruling: Pursuant to section 2033.300, a party can withdraw or amend a response to a request for admission only with leave of court, if the court finds that the admission was the result of a mistake, inadvertence or excusable neglect and if the propounding party will not be substantially prejudiced by allowing the admission to be withdrawn or amended. Section 2033.300(a) permits amendment or withdrawal of "deemed admissions" ordered by a court under § 2033.280(b). (*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979.) Section 2033.300 is designed to eliminate undeserved windfalls obtained through requests for admission and to further the policy favoring resolution of lawsuits on the merits. Therefore, any doubts must be resolved in favor of the party seeking relief. (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1420.) The terms "mistake, inadvertence or excusable neglect" as used in section